

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DOH

Date: 5/11/2026

Bill Number: SB272

Short Title (as it appears on BASIS): Health Information Exchange

What action do you recommend the Governor take?

Select one.

☒ SIGN ☐ VETO ☐ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

SB272 makes necessary statute changes that benefit stakeholders in Alaska's Health Information Exchange (HIE). The landscape surrounding the secure exchange of electronic health records has changed considerably since 2009, and these updates are necessary to keep Alaska aligned with interoperability standards and federal rules for the sharing of health data. This bill also has the potential to reduce administrative burden for patients and providers related to upcoming Community Engagement requirements under HR1. The bill also clarifies allowable HIE use cases that will benefit Alaska when considering Rural Health Transformation Program (RHTP) projects.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

The bill makes updates to the statutes related to Alaska's Health Information Exchange (HIE), including allowing the Department of Health to designate an entity or entities to act as a "designee"

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to implement a statewide electronic HIE system.

The bill:

- Aligns state statute with federal data sharing standards,
- Allows additional state and federally allowable information to be stored and exchanged on the HIE,
- Reduces the administrative burden of HIE stakeholders,
- Allows patients to authorize the use or disclosure of their HIE information,
- Adds behavioral health provider representation to the governing body,
- Adds specific reporting requirements for the annual report,
- Broadens the allowable fund sources and equipment that can be accepted by the department or designee for an HIE system/implementation, and
- Clarifies the roles and responsibilities of a designee chosen by the department.

The changes proposed in this bill also have the potential to support the department's implementation of H.R. 1 Community Engagement requirements and some use cases under the Rural Health Transformation Program.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1, Amends AS 18.23.300(a) to include “related” data that can be exchanged using the Health Information Exchange (HIE). The inclusion of “related” data is a recognition that the HIE may be beneficial for the exchange of information beyond health records/clinical data. The inclusion of related data would allow community-based organizations to exchange state and federally allowable information through the HIE.

Section 2, AS 18.23.300(b) is repealed and replaced with a substantially similar section that clarifies the duties of the Department of Health and the designated entity established in AS 18.23.300(a). The replaced section clarifies the responsibilities of the State designated entity, the “designee,” and the department.

Section 3, Amends AS 18.23.300(c) to include clarifications that both the department and designee can both enter into contracts and seek public money to support the HIE.

Section 4, Amends AS 18.23.300(d) to include a new representative on the HIE governing board from the behavioral health provider community and clarifies the make-up of the non-voting members to represent additional stakeholder and community interests.

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Section 5, Amends AS 18.23.305 to clarify and distinguish the differences between the duties of the department and the designee. Clarifies that funding for the HIE may be secured from entities beyond the federal government and clarifies language regarding the definition of “self-sustaining” to include fees that may be charged to the department or other government entities.

Section 6, Amends AS 18.23.310 to include updated data privacy and disclosure protections and clarification that some activities regarding security and disclosure are the responsibility of the designee. This section also clarifies that these standards apply to all records housed within the HIE, not just health records. Additionally, the permitted uses of the health information exchange are clarified in (b)1-5. Notably, public health activities and disclosure of information requested by the patient are added to the list of permitted uses.

Section 7, Amends AS 18.23.315 to add specific reporting requirements and metrics that must be included in the annual HIE report.

Section 8, Amends AS 18.23.325(3) to clarify that the “system” established under AS 18.23.300 does not include technical infrastructure, software, or the data contributed by system participants.

Section 9, Adds a definition of “designee” under AS 18.23.325

Section 10, Adds an effective date under AS 01.10.070(c)

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

HB285 was the companion bill in the House of Representatives, sponsored by House Health and Social Services.

Support/Opposition of the Bill

Please identify names, organizations, titles, and phone numbers of those who testified in support or in opposition of this bill.

Kendra Sticka, Executive Director of healthEconnect Alaska, the State designated HIE organization. (907.770.2626)

Dr. Cormac Sookram (907.543.3773)

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Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

Key stakeholders for a bill signing would be members of the healthEconnect Board;
Coordinated through Kendra Sticka, HIE Executive Director 907.351.2090

Next regularly scheduled board meeting(s) are 5/20 from 10:00 - Noon or 7/20 10:00 - Noon

Garret Spargo, ANTHC, Board President
Tari O'Connor, Alaska Primary Care Association, Board Vice President
Colt Courtright, Premera Blue Cross Blue Shield, Board Treasurer
Chad Jensen, LaTouche Pediatrics, Board Secretary
Dr. Aaron Cusano, Anchorage Radiation Therapy, Board member
Dr. Gene Quinn, Alaska Heart and Vascular Institute, Board Member
Dr. Joel Brownell, ANTHC, Board Member
Kathryn Craft, University of Alaska, Board Member
Phil Hofstetter, Petersburg Medical Center, Board Member

Commissioner's Signature:  _ Date: 5/11/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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